

# IT SERVICE AND MAINTENANCE AGREEMENT

Sample contract with fictional company and completed sample details

*This sample agreement is provided for drafting and formatting purposes only. It uses fictional names, addresses, fees, and service details. It should be reviewed by a qualified legal professional before use in a real transaction.*

| Agreement Item   | Sample Detail                                                                   |
|------------------|---------------------------------------------------------------------------------|
| Service Provider | BluePeak IT Solutions LLC                                                       |
| Provider Address | 1280 Ridgeway Avenue, Suite 402, Seattle, WA 98101                              |
| Provider Contact | (206) 555-0198   support@bluepeakit.example                                     |
| Client           | Harbor Lane Dental Clinic                                                       |
| Client Address   | 245 Harbor Lane, Portland, OR 97205                                             |
| Client Contact   | Dr. Amelia Santos, Practice Owner   (503) 555-0144                              |
| Effective Date   | January 1, 2026                                                                 |
| Initial Term     | January 1, 2026 to December 31, 2026                                            |
| Contract Type    | Computer repair, help desk support, preventive maintenance, and network support |

Prepared for: Harbor Lane Dental Clinic

Prepared by: BluePeak IT Solutions LLC

Document date: January 1, 2026

# IT SERVICE AND MAINTENANCE AGREEMENT

This IT Service and Maintenance Agreement (the "Agreement") is entered into as of January 1, 2026 (the "Effective Date") by and between BluePeak IT Solutions LLC, a Washington limited liability company with its principal office at 1280 Ridgeway Avenue, Suite 402, Seattle, WA 98101 ("Provider"), and Harbor Lane Dental Clinic, with its principal office at 245 Harbor Lane, Portland, OR 97205 ("Client"). Provider and Client may be referred to individually as a "Party" and collectively as the "Parties."

## 1. Purpose

Client retains Provider to perform computer repair, technical support, preventive maintenance, and network support services for Client's business systems. Provider agrees to perform the services described in this Agreement and Exhibit A in a professional and commercially reasonable manner.

## 2. Covered Equipment

This Agreement covers only the equipment listed below or later added by written change request.

| Equipment                 | Quantity | Location                                    | Notes                                            |
|---------------------------|----------|---------------------------------------------|--------------------------------------------------|
| Windows workstations      | 12       | Front desk, billing office, treatment rooms | Business desktops used for clinic operations     |
| Application server        | 1        | Network closet                              | Practice management application and shared files |
| Network attached storage  | 1        | Network closet                              | Local backup target                              |
| Firewall/router           | 1        | Network closet                              | Internet gateway and VPN                         |
| Network switches          | 2        | Network closet                              | Managed switches                                 |
| Network printers/scanners | 2        | Front desk and billing office               | Connectivity support only                        |

## 3. Scope of Services

Provider will provide the following services during the term of this Agreement:

- Computer diagnostics, troubleshooting, repair coordination, and technical support.
- Software troubleshooting, operating system support, and approved software installation.
- Virus and malware checking using commercially reasonable tools and procedures.
- Hardware installation support for Client-approved parts and peripherals.
- Network troubleshooting, Wi-Fi connectivity checks, printer connectivity checks, and basic firewall/router support.
- Monthly preventive maintenance, including health checks, update review, disk space review, and event log review.
- Backup process review and basic backup verification for the local backup target.
- Remote support during business hours and on-site support when reasonably necessary.

## 4. Services Not Guaranteed

Provider will use reasonable skill and care, but Provider does not guarantee that every computer, network device, software issue, security event, or data issue can be repaired or resolved. Some issues may be caused by obsolete equipment, third-party software limitations, internet service provider outages, malware damage, hardware failure, licensing restrictions, or other conditions outside Provider's control.

5. Service Hours and Response Times

| Service Type                 | Included Response Target            | Notes                                             |
|------------------------------|-------------------------------------|---------------------------------------------------|
| Standard remote support      | Within 4 business hours             | Monday to Friday, 8:30 AM to 5:30 PM Pacific Time |
| Standard on-site support     | Within 1 to 2 business days         | Subject to technician availability                |
| Urgent business interruption | Best effort within 2 business hours | Additional urgent support fee may apply           |
| After-hours support          | Best effort                         | Billed separately unless approved in writing      |

6. Fees and Payment

Client shall pay Provider according to the following sample fee schedule:

| Fee Item                        | Sample Amount                 | Payment Terms                                            |
|---------------------------------|-------------------------------|----------------------------------------------------------|
| Annual maintenance fee          | \$2,400.00                    | \$1,200.00 due upon signing; \$1,200.00 due July 1, 2026 |
| Included preventive maintenance | 1 monthly remote health check | Included in annual fee                                   |
| Included support allowance      | 6 support hours per month     | Unused hours do not roll over                            |
| Additional remote support       | \$85.00 per hour              | Billed in 15-minute increments                           |
| Additional on-site support      | \$115.00 per hour             | Minimum 1 hour                                           |
| After-hours support             | \$165.00 per hour             | Requires Client approval                                 |
| Parts, software, licenses       | At cost plus 10% handling fee | Client approval required before purchase                 |

Invoices are due within fifteen (15) calendar days from the invoice date. Provider may suspend non-emergency work if undisputed invoices remain unpaid for more than ten (10) days after written notice.

7. Estimates and Approval

Provider may provide estimates for repair work, hardware purchases, software licenses, or project work. Estimates are not guaranteed because additional issues may be discovered during diagnosis or implementation. If Provider expects charges to exceed an estimate by more than 15%, Provider will request Client approval before continuing, except where immediate action is reasonably necessary to protect Client systems or data.

8. Parts, Hardware, and Software

Client is responsible for the cost of all parts, hardware, software licenses, subscriptions, vendor charges, manufacturer fees, shipping, and taxes. Any parts or licenses ordered specifically for Client must be paid in advance unless Provider agrees otherwise in writing. Provider is not responsible for manufacturer defects, third-party warranty limitations, or software vendor restrictions.

9. Data Backup and Data Loss

Client is solely responsible for maintaining current and complete backups of all important data, files, documents, email, application data, passwords, software license keys, and business records. Provider may assist Client with backup

configuration or review, but Client remains responsible for confirming that backups are complete, current, and restorable unless a separate written backup monitoring agreement is executed.

Client acknowledges that repair, malware removal, system restore, operating system repair, hardware replacement, software reinstallation, or network maintenance may involve risk of data loss. Provider shall not be liable for data loss except to the extent caused by Provider's intentional misconduct.

## 10. Client Responsibilities

Client agrees to:

- Provide Provider with reasonable access to the covered systems, premises, passwords, administrator credentials, and vendor accounts needed to perform services.
- Designate a primary contact authorized to approve work and expenses.
- Maintain legal software licenses and active vendor subscriptions.
- Notify Provider promptly of significant system, network, malware, or data issues.
- Avoid unauthorized repairs, configuration changes, or third-party modifications that may interfere with Provider's work.
- Maintain appropriate physical security, surge protection, environmental controls, and internet service.

## 11. Service Guarantee

Provider guarantees labor for the same reported issue for fifteen (15) calendar days after service completion. If the same issue returns during the guarantee period and Provider determines that the original service was incorrectly performed, Provider will re-perform the labor at no additional labor charge. Parts, hardware, software, licenses, vendor charges, and unrelated issues remain Client's responsibility.

This service guarantee does not apply to malware reinfection, user error, power events, internet outages, manufacturer defects, new symptoms, third-party changes, unauthorized modifications, hardware failure, software updates, or damage caused by misuse, accident, liquid, fire, flood, or improper environment.

## 12. Exclusions

Unless specifically stated in Exhibit A, this Agreement does not include:

- Cost of replacement hardware, software licenses, cloud subscriptions, warranty extensions, consumables, batteries, toner, ink, paper, or cabling materials.
- Advanced cybersecurity monitoring, incident response, penetration testing, forensic investigation, or compliance certification.
- Data recovery from failed, encrypted, corrupted, or physically damaged storage media.
- Support for unsupported, pirated, end-of-life, or unlicensed software.
- Major upgrades, office moves, network rewiring, server migration, cloud migration, or new system rollouts unless approved as separate project work.
- Internet service provider outages, telecom provider issues, electrical problems, building wiring faults, or third-party vendor failures.
- Damage caused by accident, neglect, misuse, unauthorized repairs, non-standard power, bad grounding, fire, flood, lightning, theft, vandalism, or force majeure events.

## 13. Confidentiality

Each Party may receive confidential or proprietary information from the other Party, including business records, system configurations, passwords, network diagrams, client information, financial records, technical processes, and other non-public information. Each Party agrees to protect such information using reasonable care and to use it only as

necessary to perform or receive services under this Agreement. This obligation does not apply to information that becomes public through no fault of the receiving Party, is independently developed, or is required to be disclosed by law.

## 14. Security Disclaimer

Provider will use commercially reasonable efforts to support Client's systems and recommend practical security measures. However, Client acknowledges that no computer system, network, firewall, antivirus tool, backup system, password process, or security control can be guaranteed to prevent all intrusions, malware, downtime, data loss, or unauthorized access. Client is responsible for approving and funding security improvements recommended by Provider.

## 15. Limitation of Liability

To the maximum extent permitted by law, Provider shall not be liable for indirect, incidental, special, punitive, consequential, or economic damages, including loss of profits, loss of revenue, business interruption, loss of goodwill, loss of data, loss of use, downtime, or third-party claims, even if Provider has been advised of the possibility of such damages.

Provider's total liability for all claims arising out of or related to this Agreement shall not exceed the total amount actually paid by Client to Provider under this Agreement during the three (3) months immediately preceding the event giving rise to the claim.

## 16. Indemnification

Client agrees to indemnify and hold Provider harmless from third-party claims, damages, costs, expenses, and reasonable attorney fees arising out of Client's misuse of systems, unlicensed software, illegal content, unauthorized instructions, failure to maintain backups, failure to follow Provider recommendations, or breach of this Agreement.

## 17. Independent Contractor

Provider is an independent contractor. Nothing in this Agreement creates an employment relationship, partnership, joint venture, agency, or franchise relationship between the Parties.

## 18. Non-Solicitation

During the term of this Agreement and for twelve (12) months after termination, neither Party shall knowingly solicit for employment or directly hire the employees or contractors of the other Party who were involved in the services under this Agreement, except with prior written consent or through a general public job posting not targeted at such persons.

## 19. Term and Termination

The initial term of this Agreement begins on January 1, 2026 and ends on December 31, 2026. The Agreement may renew for additional one-year terms upon written agreement of the Parties.

Either Party may terminate this Agreement without cause by providing thirty (30) days written notice. Either Party may terminate this Agreement for material breach if the breaching Party fails to cure the breach within fourteen (14) business days after receiving written notice describing the breach. Upon termination, Client shall pay Provider for all services performed, approved expenses incurred, and non-cancelable items ordered before the effective termination date.

## 20. Force Majeure

Neither Party shall be liable for delay or failure to perform caused by events beyond its reasonable control, including natural disasters, fire, flood, storm, power outage, internet outage, strike, labor dispute, war, terrorism, civil unrest, government action, pandemic, supply chain disruption, or other similar events.

21. Notices

Notices under this Agreement must be sent by email and by one additional reasonable method, such as certified mail, courier, or hand delivery, to the addresses listed in the Agreement Summary unless updated in writing.

22. Governing Law and Dispute Resolution

This sample Agreement is governed by the laws of the State of Washington, without regard to conflict-of-law rules. The Parties agree to first attempt to resolve disputes through good faith management-level discussion. If unresolved, the Parties may pursue mediation, arbitration, or court action as permitted by applicable law and any written amendment signed by both Parties.

23. Entire Agreement; Amendments

This Agreement, including Exhibit A and any signed change requests, constitutes the entire agreement between the Parties regarding the subject matter and supersedes all prior proposals, discussions, and communications. Any amendment must be in writing and signed by authorized representatives of both Parties.

24. Acceptance

By signing below, the Parties acknowledge that they have read, understood, and agreed to this Agreement.

|                             |                             |
|-----------------------------|-----------------------------|
| Provider                    | Client                      |
| BluePeak IT Solutions LLC   | Harbor Lane Dental Clinic   |
| Authorized Signature: _____ | Authorized Signature: _____ |
| Name: Marcus Reed           | Name: Dr. Amelia Santos     |
| Title: Managing Director    | Title: Practice Owner       |
| Date: January 1, 2026       | Date: January 1, 2026       |

# EXHIBIT A - STATEMENT OF WORK

This Statement of Work is part of the IT Service and Maintenance Agreement between BluePeak IT Solutions LLC and Harbor Lane Dental Clinic.

## A. Included Monthly Maintenance

- Review workstation and server health status for covered systems.
- Review available disk space and basic performance indicators.
- Review critical operating system update status.
- Check antivirus/security software status where installed and accessible.
- Review backup job status for the local backup target and report visible failures.
- Provide a short monthly maintenance summary by email to Client's primary contact.

## B. Included Help Desk Support

The annual fee includes up to six (6) support hours per month for ordinary help desk requests related to covered systems. Support hours may be used for remote troubleshooting, user support, printer connectivity, workstation issues, routine software troubleshooting, and basic network issues. Unused support hours expire at the end of each calendar month and do not roll over.

## C. Project Work Requiring Separate Approval

The following items require separate written approval and may be billed separately:

- Server replacement, server migration, or cloud migration.
- New office setup, office move, or structured cabling work.
- Major firewall replacement or network redesign.
- Practice management software migration or database repair.
- Cybersecurity incident response or forensic investigation.
- Backup redesign or disaster recovery project.

## D. Sample Service Order

| Service Order Item   | Sample Entry                                                                                                                              |
|----------------------|-------------------------------------------------------------------------------------------------------------------------------------------|
| Service Order Number | BP-2026-0017                                                                                                                              |
| Requested By         | Nina Patel, Office Manager                                                                                                                |
| Request Date         | February 4, 2026                                                                                                                          |
| Issue                | Billing workstation is running slowly and network printer is intermittently unavailable.                                                  |
| Action Taken         | Checked startup applications, removed temporary files, reviewed printer queue, reinstalled printer driver, verified network connectivity. |
| Result               | Workstation performance improved. Printer test page completed successfully.                                                               |
| Labor                | 1.25 hours remote support                                                                                                                 |
| Charge               | Included under monthly support allowance                                                                                                  |

# EXHIBIT B - CHANGE REQUEST FORM

This Change Request Form is used when Client requests a change in covered systems, service level, scope, pricing, or project work.

| Field                  | Sample Completed Detail                                                                               |
|------------------------|-------------------------------------------------------------------------------------------------------|
| Change Request Number  | CR-2026-004                                                                                           |
| Requested By           | Dr. Amelia Santos                                                                                     |
| Request Date           | March 15, 2026                                                                                        |
| Change Description     | Add three new treatment room laptops to the covered equipment list and configure secure Wi-Fi access. |
| Business Reason        | Clinic is opening three additional treatment rooms in April 2026.                                     |
| Additional Equipment   | 3 Windows laptops                                                                                     |
| One-Time Setup Fee     | \$285.00                                                                                              |
| Monthly Fee Adjustment | \$45.00 per month beginning April 1, 2026                                                             |
| Provider Approval      | Marcus Reed, Managing Director                                                                        |
| Client Approval        | Dr. Amelia Santos, Practice Owner                                                                     |

## Change Approval

Provider Signature: \_\_\_\_\_ Date: \_\_\_\_\_

Client Signature: \_\_\_\_\_ Date: \_\_\_\_\_

End of sample contract.